

Court No. - 29

Case :- WRIT - C No. - 40232 of 2009

Petitioner :- Omkar Nath Sharma

Respondent :- U.P. Power Corporation Limited And Others

Petitioner Counsel :- Ajeet Srivastava

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Sunil Ambwani,J.

Hon'ble Ran Vijai Singh,J.

Shri Pramod Bhardwaj, learned counsel for the respondents will seek instructions with regard to provisional assessment and final assessment before the recovery has been sent.

Put up on Monday showing the name of Shri Pramod Bhardwaj.

Order Date :- 6.8.2009

SP/

Court No. 29

CIVIL MISC. WRIT PETITION NO. 40232 OF 2009

Omkar Nath Sharma vs. U.P. Power Corporation Ltd. & ors

Hon'ble Sunil Ambwani, J.**Hon'ble Ran Vijai Singh, J.**

Heard learned counsel for the petitioner. Shri Promod Bharadwaj appears for Executive Engineer, U.P. Power Corporation, Ghazipur. Learned standing counsel appears for respondent no.3.

In a checking made by the electricity department on the premises of the petitioner on 8.5.2008, it was found that the petitioner is unauthorisedly drawing electricity through a L/T line using cut-out starter to run a 7.5 H.P. Drill machine; 1/2 H.P. leth Machine; 2 U.P. and rounder 1/2 H.P. He was thus found using 10 HP load in his shop taken by him on rent from Guru Shanker in the commercial premises. A provisional assessment of electricity charges was made against the petitioner on 29.5.2008 and was sent to him. The petitioner could not submit any reply, on which, after recording reasons on the recovery certificate, the Executive Engineer sent the recovery certificate to the Collector, on which impugned citation has been sent to recover Rs.3, 54, 379/- from the petitioner. It is submitted that the petitioner does not have electricity connection. He uses generator to run drilling machines and was not given any opportunity of hearing, either before or after the provisional assessment. The demand raised against him is in violation of the provisions of paragraph 8.1 (b) of the U.P. Electricity Supply Code, 2005.

Shri Promod Bharadwaj states that in the checking, the petitioner is found using electricity without any authority. A provisional assessment was made and the petitioner was given an opportunity at the time of checking to get the offence compounded. He did not deposit any amount nor made any protest on which the provisional assessment was made and sent to the petitioner by registered post. The recovery was forwarded after waiting for reasonable time. The petitioner did not submit any reply to the provisional assessment and thus the provisional assessment was treated to be final assessment for recovering the amount due from the petitioner on the basis of formula given in the rate schedule.

Paragraph 8.1 (b) of the U.P. Electricity Supply Code, 2005 provides for making final assessment in cases of theft, before the recovery can be initiated. The relevant paragraphs are quoted as below:-

“8.1 (b) Hearing

(ii) No theft case shall be booked for mere breakage of window glass or old seal of the energy meter. In such cases, if the average monthly consumption pattern for last one year is reasonably uniform as the assessed consumption (monthly), and there is no other prima facie evidence of theft/ UUE found at the consumer premises, no further proceedings shall be taken for theft/ UUE of electricity and the decision shall be communicated to the consumer under proper receipt within 7 working days of the date of inspection, and connection shall be restored through original meter after proper checking/ resealing. The contents of such report commending for dropping the case shall be communicated to the Special Court within a copy to the police station where the FIR was lodged.

(iii) If the Assessing Officer of the licensee suspects that theft of Electricity has taken place (as defined under Section 135 of the Act), he will serve the provisional assessment bill along with show cause notice to the consumer for hearing, giving 15 working days, under proper receipt. The notice shall invite objections in writing from the consumer, if any, against the charges and provisional assessment and require the presence of the consumer to answer to all the charges imposed by the licensee.

(iv) If, after hearing, the authorized officer finds that a case of theft has been established, the assessment shall be done for the energy consumption for past period as per the assessment formula given in Annexure-6.3 on 1.5 (one and a half) times the rates as per applicable normal tariff to the purpose for which the energy is abstracted, used or consumed or wasted or diverted, whichever is higher and demand and collect the same by including the same in a separate bill. This is in addition to any civil/ criminal proceedings that may be instituted as provided by the Act, and described in clause 8.2.

(vii).

(v) A copy of the order shall be served to the consumer under proper receipt and in case of refusal to accept the order or in absence of the consumer, shall be served on him under Registered Post/ Speed Post. The Authorized officer may extend the last date of payment or approve the payment to be made in installments on a consideration of the financial position and other conditions of the licensee. The amount, the extended last date and/ or time schedule of payment/ installments should be clearly stated in the speaking order.”

In this matter we find that a final assessment has not been made against the petitioner. The electricity department has not recorded any findings, that the provisional assessment was served after giving the consumer an opportunity of hearing before issuing the recovery certificate.

The petitioner has a right to notice of the provisional assessment; the allegations made against him, and the basis of the demand. Para 8.1 (b) (iii)

provides for a notice and personal hearing after the provisional assessment and before making a final assessment. In absence of final assessment order the petitioner has also lost a valuable right to file an appeal under Section 127 of the Electricity Act, 2003.

The writ petition is consequently **allowed**. The recovery certificate and the citation dated 25.5.2009 is set aside. A copy of the provisional assessment order has been given to the petitioner by Shri Promod Bharadwaj in Court today. The petitioner will file a reply to the provisional assessment order and will be given opportunity of personal hearing. The respondents will thereafter make a final assessment order in accordance with the law.

Dt. 10.8.2009

RKP/-